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Provision of April 10, 2025
Register of provisions
n. 200 of April 10, 2025

THE GUARANTOR FOR THE PROTECTION OF PERSONAL DATA

IN THE meeting held today, attended by
Prof. Pasquale Stanzione, President, Prof.
Ginevra Cerrina Feroni, Vice President, Dr.
Agostino Ghiglia and Attorney Guido Scorza, members, and
Dr. Claudio Filippi, Acting Secretary General;

HAVING REGARD TO Regulation (EU) 2016/679 of the European Parliament
and of the Council of April 27, 2016, concerning
the protection of natural persons with regard to
the processing of personal data, as well as the free
movement of such data and repealing Directive
95/46/EC, "General Data Protection Regulation" (hereinafter, "Regulation");

HAVING REGARD TO Legislative Decree No. 196 of June 30, 2003, containing
"Code regarding the protection of personal data,
containing provisions for the adaptation
of the national legal system to Regulation (EU)
2016/679 of the European Parliament and of the Council, of
April 27, 2016, concerning the protection of
natural persons with regard to the processing of personal data,
as well as the free movement of such data and repealing Directive 95/46/EC (hereinafter
"Code");

HAVING REGARD TO Regulation No. 1/2019 concerning
internal procedures with external relevance,
aimed at carrying out the tasks and
exercising the powers entrusted to the Guarantor for the
protection of personal data, approved by
Resolution No. 98 of April 4, 2019, published in
G.U. No. 106 of May 8, 2019 and on www.gpdp.it, doc.
web n. 9107633 (hereinafter "Guarantor Regulation
No. 1/2019");

HAVING REGARD TO the documentation on file;

HAVING REGARD TO the observations made by the Acting Secretary General
pursuant to Article 15 of the Guarantor Regulation No. 1/2000 on the organization
and functioning of the office of the Guarantor for the
protection of personal data, doc. web n. 1098801;

REPORTING Attorney Guido Scorza;

PREMISE

1. Introduction.

With a complaint submitted on XX pursuant to Article 77
of the Regulation, Ms. XX complained, in
particular, that, on XX, an operator of a
provincial office of the Agency for sponsorship and
assistance for citizens and agriculture (hereinafter also "EPACA", "Agency" or "Patronage") would
have
accessed her personal data, held by INPS, indicating as justification

"extension of delegation", despite her believing that she had never granted any mandate to the aforementioned provincial office of the Agency.

2. The investigative activity.

In the course of the investigation, the Agency, with a note dated XX, represented, in particular, that:

- the operator of the aforementioned provincial office "on XX, analyzing the cases set to expire by colleagues regarding the certification extracts, had noted that on XX for the [... complainant] a deadline for an update of the position with the related request for a certificate had been entered [by a] former colleague [...]" ; "the date of the invitation entered was XX and the expiration date was XX";
- "worried about the already passed deadline, aware that a certification extract is usually requested a few months before the pension application, he searched in the program [...] if there was a phone number or an email in the registry to contact her quickly in order not to let her lose any rights [but] no telephone or email contact was entered in the registry";
- "at this point, considering that the lady had relied on [the Agency] on XX for a pension consultation and that such consultation had to continue with an update through the request for a certification extract, [...] he] entered the INPS website entering the tax code on the delegation which had not been revoked by anyone and he made an extension; then [he] entered her extract and he noted that fortunately the start date of the pension was still postponed by a few years";
- given this, the operator of the aforementioned provincial office "requested the acquisition of the extract – account of the [...] complainant] exclusively for the calculation of the contribution years and any pension windows, in order to ascertain that she would not suffer a delay in the submission of the pension application [...] acting] in the interest and for the purpose of protecting the user [and, however] with carelessness, and, in any case, in violation of the instructions and directives given to all employees"; "it is also true that access was made in a state of necessity since [the aforementioned operator] believed he had caused damage to the user";
- "it was in the interest of [...] the] Patronage to take action for a disciplinary measure against the Epaca staff member, as he did not comply with the instructions given regarding privacy";
- "for the provision of its services, the Patronage uses pre-printed forms for the acquisition of the delegation by interested parties who intend to formally submit their request [...] and] based on the provisions given by the Central Office [of the Agency], no operation requested by users can be carried out by the offices of

the Patronage itself in the absence of a written delegation (previously acquired) from them. The Epaca staff have been [in fact] instructed and trained regarding the necessary acquisition, at the time of collecting data related to users, of the 'form containing the mandate for assistance and representation'."

subsequent note dated XX, the Entity, while providing further elements of information, specifically declared that:

- "the mandate conferred by [... claimant] is no longer in possession of [... the] Patronage, as it is a mandate issued in XX, for which there was an obligation to retain it until the date of XX, in light of what is provided for by Article 11, paragraph 3, of the Ministerial Decree of the Ministry of Labor and Social Policies of October 10, 2008, No. 193";
- "the personal data of [... claimant] has been retained for five years, with the processing methods - Privacy policy of Epaca."

It is also noted that, as subsequently emerged during the investigation (see claimant's note of XX as well as EPACA's note of XX), the Entity was entrusted, by virtue of a mandate, with the management of the claimant's case - who, for such matters, usually turns to the trade union organization to which they are affiliated - as, based on a convention in place since 2005, this organization avails itself of the support of EPACA for the provision to its members of services similar to those used by the claimant.

By note dated XX, the Office, based on the elements acquired, the checks carried out, and the facts that emerged following the investigative activity, notified EPACA, pursuant to Article 166, paragraph 5, of the Code, of the initiation of proceedings for the adoption of the measures referred to in Article 58, paragraph 2, of the Regulation, on the assumption that the aforementioned Entity, having retained the personal data of the claimant for a period exceeding the five years provided for by the sector regulations, accessed the personal data of the claimant from the INPS database in the absence of a specific and valid mandate that could still be considered legally effective towards the Entity itself, in a manner not compliant with the principles of "lawfulness, fairness, and transparency" and "data retention limitation" as well as in the absence of an appropriate legal basis, in violation of Articles 5, paragraph 1, letters a) and e), and 6 of the Regulation and Articles 2-ter and 116 of the Code. With the same note, the aforementioned holder was invited to submit defensive writings or documents to the Authority or to request to be heard by the Authority (Article 166, paragraphs 6 and 7, of the Code, as well as Article 18, paragraph 1, of Law No. 689 of November 24, 1981).

By note dated XX, the Entity submitted a defensive memorandum in this regard and, on XX, was heard in a hearing.

3. The regulatory framework regarding the protection of personal data and the applicable sector regulations

According to European regulations on data protection, the processing of personal data is lawful only if it is based on one of the legal bases provided for by the Regulation (see Articles 5, paragraph 1, letter a), 6, 9, and 10 of the Regulation) and ensures compliance with the principles regarding data protection, among which, in particular, those of "lawfulness, fairness, and transparency" and "data retention limitation" (Article 5, paragraph 1, letters a) and e), of the Regulation).

In any case, it is the responsibility of the data controller to implement appropriate technical and organizational measures to ensure, and to be able to demonstrate, that the processing is carried out in accordance with the data protection regulations (Articles 5, paragraph 2, and 24 of the Regulation).

With more specific reference to the case at hand, it is highlighted that patronage and social assistance institutions, as private law entities providing a public utility service (see Article 1 of Law No. 152 of March 30, 2001), may process, as data controllers, the personal data of their users, for the performance of their activities and the provision of their services, particularly if the processing is necessary "to comply with a legal obligation to which the data controller is subject" or "for the performance of a task carried out in the public interest or in the exercise of official authority vested in

the data controller” (Article 6, paragraph 1, letters c) and e) of the Regulation; see also Article 2-ter of the Code; regarding the processing of special categories of data, see Articles 9 of the Regulation and 2-sexies of the Code).

In this context, Article 116, paragraph 1, of the Code expressly provides that, “for the performance of their activities, patronage and social assistance institutions, within the framework of the mandate conferred by the interested party, may access the databases of the entities providing benefits, in relation to types of data specifically identified with the consent expressed by the interested party,” requiring, among other things, as an indispensable prerequisite for access by such institutions to the databases of the entities providing benefits, the granting of a specific and appropriate mandate by the interested user.

This is also in light of the applicable sector regulations, which, in regulating the activities of consultation, assistance, and protection of patronage institutions, establishes, among other things, that they, in the name and on behalf of their assisted parties and by their mandate, may submit applications and carry out all necessary acts to obtain the aforementioned benefits (see Article 8 of Law No. 152 of March 30, 2001).

The applicable sector regulations also establish that “each office of the patronage institutions is required to retain, for five years and to present for checks, all documentation regarding the activities carried out [...]” (see, in specific regulation), the fact that the INPS allowed the operator to click a “renewal” button for the previous delegation to access updated data, based on the already conferred mandate, which was that of XX [...and that, therefore, according to the Entity,] for INPS, reusing a mandate to access updated data, when the mandate has yet to exhaust its effects, is an allowed action (cf. defensive notes of XX; see also, similarly, the hearing report of XX). Even from a perspective of “accountability” (art. 5, par. 2, of the specific regulation), it must be emphasized that the Entity’s reliance on the INPS’s actions does not absolve it of its own responsibilities regarding the lawful processing of personal data.

5. Conclusion.

In light of the above, it is concluded that the Entity has not adhered to the legal requirements set forth in the applicable regulations regarding the retention and processing of personal data. The unauthorized access to the claimant’s personal data, conducted without a valid mandate or specific consent, constitutes a violation of the provisions of the Code. Consequently, the Entity is held responsible for the improper handling of the claimant’s personal data and must take corrective measures to ensure compliance with data protection laws moving forward.

Regulation), in fact, it is the responsibility of the Entity, as the data controller, to adequately demonstrate the occurrence of the prerequisites for accessing the INPS database, among which, in particular, is the copy of the mandate issued by the user and the consent required by Article 116, paragraph 1, of the Code.

Nor does it matter what has been reported by the Entity in its defensive memoranda, whereby, in particular, “in this case, [...] the personal data [of the complainant] were collected for specific purposes which were those of the presumptive calculation of the pension commencement and its update in the event of changes in the regulations, [...] and the related processing was necessary] to implement the assistance mandate until the definitive settlement of the pension [...] considering in particular that the complainant] had not been placed in retirement, so the mandate already conferred in XX for the access made in XX was still in effect as she had never revoked it” (cf. defensive memoranda of XX; see, similarly, the hearing minutes of XX). In this regard, it is necessary to recall how the Entity indicated as the reason for access a “delegation extension” and how, from the examination of the documentation on file, there are no specific evidences suitable to prove that, in the case at hand, the complainant ever actually took initiatives aimed at requesting or, in any case, validating an extension of the originally conferred mandate.

Nor, for the aforementioned reasons, can it be invoked that the complainant “could have asked Epaca, pursuant to Articles 15 et seq. of the GDPR, for the deletion of her personal data, which was never

done” (cf. defensive memoranda of XX), or that “duty and correctness required the assisted party - if she had wanted to turn to another patronage for the same service, or revoke the mandate, based on the information that EPACA provides on its website - to communicate this circumstance by registered letter to the Entity as well as to INPS” (cf. hearing minutes of XX). The failure to exercise rights pursuant to Articles 15-22 of the Regulation by the interested party, in fact, does not exempt the data controller from the obligation to adopt the necessary measures to ensure compliance with the regulatory framework regarding the protection of personal data.

All this premised, it appears that the processing of personal data in question - consisting of the retention of the complainant's personal data for a period longer than that provided for the mandate that justified the processing, and, in any case, longer than the five years provided for by the sector regulations (cf., in particular, Articles 11, paragraph 3, and 16, paragraph 1, letter e), of the Decree of the Ministry of Labor and Social Policies of October 10, 2008, No. 193) and in accessing the INPS database in the absence of the prerequisites provided by law and, in particular, of a specific and valid mandate that could still be considered effective in legal terms towards the Entity - has been carried out in a manner not compliant with the principles of “lawfulness, fairness, and transparency” and “data retention limitation” as well as in the absence of an appropriate legal basis, in violation of Articles 5, paragraph 1, letters a) and e), and 6 of the Regulation and Articles 2-ter and 116, paragraph 1, of the Code.

****5. Conclusions.****

In light of the evaluations mentioned above, it is noted that the statements made by the data controller during the investigation - for the veracity of which one may be called to respond pursuant to Article 168 of the Code - while deserving consideration, do not allow for overcoming the objections notified by the Office with the initiation of the procedure and are insufficient to allow for the archiving of the present procedure, as none of the cases provided for by Article 11 of the Garante Regulation No. 1/2019 apply. Therefore, the preliminary evaluations of the Office are confirmed, and the unlawfulness of the processing of personal data carried out by the patronage and assistance entity for citizens and agriculture for having processed the personal data of the complainant, in violation of Articles 5, paragraph 1, letters a) and e), and 6 of the Regulation, as well as 2-ter and 116 of the Code, is noted.

Considering that the violation of the aforementioned provisions occurred as a result of a single conduct (the same processing or interrelated treatments), Article 83, paragraph 3, of the Regulation applies, according to which the total amount of the administrative pecuniary sanction does not exceed the amount specified for the most serious violation. Considering that, in this case, all violations are subject to the sanction provided for by Article 83, paragraph 5, of the Regulation, as recalled also by Article 166, paragraph 2, of the Code, the total amount of the sanction is to be quantified up to €20,000,000.

In this context, considering, in any case, that the conduct has exhausted its effects and that the Entity has declared that it had provided instructions to its operators adequate to ensure compliance with the regulations on the protection of personal data, the prerequisites for the adoption of further corrective measures pursuant to Article 58, paragraph 2, of the Regulation do not exist.

****6. Adoption of the injunction order for the application of the administrative pecuniary sanction and accessory sanctions (Articles 58, paragraph 2, letter i and 83 of the Regulation; Article 166, paragraph 7, of the Code).****

The Garante, pursuant to Articles 58, paragraph 2, letter i) and 83 of the Regulation as well as Article 166 of the Code, has the power to “impose an administrative pecuniary sanction pursuant to Article 83, in addition to the [other] [corrective] measures referred to in this paragraph, or in lieu of such measures, depending on the circumstances of each individual case” and, in this context, “the Board [of the Guarantor] adopts the injunction order, which also provides for the application of the administrative sanction accessory to its publication, in whole or in part, on the Guarantor's website pursuant to Article 166, paragraph 7, of the Code” (Article 16, paragraph 1, of the Guarantor's Regulation No. 1/2019).

In this regard, taking into account Article 83, paragraph 3, of the Regulation, in this case the violation of the aforementioned provisions is subject to the application of the administrative pecuniary sanction

provided for by Article 83, paragraph 5, of the Regulation.

The aforementioned administrative pecuniary sanction imposed, depending on the circumstances of each individual case, must be determined in amount taking into due account the elements provided for by Article 83, paragraph 2, of the Regulation.

Considering that:

in this case, although access was made by the operator of the provincial office disregarding the instructions given regarding the processing of personal data, the accessed information concerned only one data subject and, based on what was stated by the data controller, “there have never been any similar events to that complained of by the complainant in this case” (cf. hearing report of XX; Article 83, paragraph 2, letter a), of the Regulation);

the violation is characterized as negligent, given that the data controller stated that he acted in good faith, in the exclusive interest of the complainant, in order to prevent damage to her as well as believing that he was in a “state of necessity [...] due to the [alleged] need to ensure the execution of the mandate, which, being specifically aimed at verifying the requirements for the retirement of the data subject, would only be completed upon acceptance of the retirement application or its rejection and any administrative appeals” (cf. hearing report of XX; Article 83, paragraph 2, letter b), of the Regulation);

the documents do not show that the processing involved data belonging to the special categories referred to in Article 9 of the Regulation (cf. Article 83, paragraph 2, letter g), of the Regulation), it is believed that, in this case, the level of severity of the violation committed by the data controller is low (cf. European Data Protection Board, “Guidelines 4/2022 on the calculation of administrative pecuniary sanctions pursuant to the GDPR” of May 24, 2023, point 60).

That being said, it is believed that, for the purposes of quantifying the sanction, the following mitigating circumstances should be taken into account:

the Entity has offered sufficient cooperation with the Authority during the investigation (Article 83, paragraph 2, letter f), of the Regulation);

there are no previous relevant violations committed by the Entity (Article 83, paragraph 2, letter e), of the Regulation).

By reason of the aforementioned elements, assessed in their entirety, it is deemed appropriate to determine the amount of the pecuniary sanction at the sum of €5,000 (five thousand/00) for the violation of Articles 5, paragraph 1, letters a) and e), and 6 of the Regulation, as well as 2-ter and 116 of the Code, as an administrative pecuniary sanction deemed, pursuant to Article 83, paragraph 1, of the Regulation, effective, proportionate, and dissuasive.

It is also believed that, pursuant to Article 166, paragraph 7, of the Code and Article 16, paragraph 1, of the Guarantor's Regulation No. 1/2019, the publication of this section containing the injunction order on the Guarantor's website should proceed. This is in consideration of the fact that access to the INPS database was made by the Entity in the absence of the prerequisites provided for by the applicable regulatory framework.

Finally, it is noted that the prerequisites referred to in Article 17 of Regulation No. 1/2019 are met.

ALL OF THE ABOVE HAVING BEEN STATED, THE GUARANTOR declares, pursuant to Article 57, paragraph 1, letter f), of the Regulation, the unlawfulness of the processing carried out by EPACA for violation of Articles 5, paragraph 1, letters a) and e), and 6 of the Regulation, as well as 2-ter and 116 of the Code, in the terms set forth in the reasoning;

ORDERS

the Entity for Sponsorship and Assistance for Citizens and Agriculture (“EPACA”), represented by the legal representative pro tempore, with registered office at via XXIV maggio, 43 – 00187, Rome, Tax Code 80051730580, to pay the sum of €5,000 (five thousand/00) as an administrative pecuniary sanction for the violations indicated in the reasoning. It is represented that the offender, pursuant to Article 166, paragraph 8, of the Code, has the option to settle the dispute by paying, within 30 days, an

amount equal to half of the imposed sanction;

ENJOINS

the aforementioned Entity, in case of failure to settle the dispute pursuant to Article 166, paragraph 8, of the Code, to pay the sum of €5,000 (five thousand/00) according to the methods indicated in the attachment, within 30 days from the notification of this provision, under penalty of the adoption of subsequent enforcement acts in accordance with Article 27 of Law No. 689/1981;

DISPOSES

- pursuant to Article 166, paragraph 7, of the Code and Article 16, paragraph 1, of the Guarantor's Regulation No. 1/2019, the publication of the injunction order on the Guarantor's website;
- pursuant to Article 154-bis, paragraph 3 of the Code and Article 37 of the Guarantor's Regulation No. 1/2019, the publication of this provision on the website of the Authority;
- pursuant to Article 17 of the Garante Regulation No. 1/2019, the annotation of violations and the measures adopted in accordance with Article 58, paragraph 2 of the Regulation, in the internal register of the Authority provided for by Article 57, paragraph 1, letter u) of the Regulation.

Pursuant to Articles 78 of the Regulation, 152 of the Code, and 10 of Legislative Decree No. 150/2011, an appeal against this provision may be filed before the ordinary judicial authority, under penalty of inadmissibility, within thirty days from the date of communication of the provision itself or within sixty days if the appellant resides abroad.

Rome, April 10, 2025

THE PRESIDENT

Stanzione

THE REPORTER

Scorza

THE ACTING SECRETARY GENERAL

Filippi